

**CHARTER SCHOOL AGREEMENT
HOPE CHINESE CHARTER SCHOOL**

by and between

Beaverton School District No. 48

and

Hope Chinese Charter School

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CHARTER SCHOOL AGREEMENT HOPE CHINESE CHARTER SCHOOL

This Charter School Agreement (this "Charter"), entered into effective as of July 1, 2023 (the "Effective Date"), by and between Beaverton School District No. 48, an Oregon public school district (the "District"), and Hope Chinese Charter School ("THE CHARTER SCHOOL"), an Oregon nonprofit corporation, to establish Hope Chinese Charter School, an Oregon public charter school (the "Charter School").

RECITALS

A. The parties entered into an initial Charter Agreement effective July 1, 2012 and ending June 30, 2015 (the "First Charter"), renewed the First Charter for a second term effective July 1, 2015 and ending June 30, 2018 (the "Second Charter"), and renewed the Second Charter for a third term effective July 1, 2018 and ending June 30, 2023 (the "Third Charter").

B. On March 13, 2023, the District approved renewal of the Existing Charter for a fourth charter term.

C. The parties intend that this Charter serve as the charter agreement for the THE CHARTER SCHOOL.

D. The recitals set forth above are contractual and are to be considered part of this Agreement and to be construed to effectuate this Agreement.

NOW, THEREFORE, in consideration of the foregoing contractual recitals and the mutual understandings, covenants, and payments herein described, and for other good and valuable consideration, the sufficiency of which is acknowledged, the parties agree as follows:

AGREEMENT

1. ESTABLISHMENT OF THE CHARTER SCHOOL

This Charter is the written charter required under ORS 338.065(1) for the establishment of the Charter School as a public charter school under ORS Chapter 338 (the "Act"), which authorizes public charter schools and generally describes their formation, operation, and funding.

2. TERM OF AGREEMENT

2.1 Term. The term of this Charter shall commence on July 1, 2023, and will automatically expire on June 30, 2028, unless earlier terminated as provided herein.

2.2 Renewal. If THE CHARTER SCHOOL desires to renew this Charter, it must submit a written renewal request to the District at least 180 days before the current Charter term expires. The District will evaluate the proposed renewal in accordance with the requirements of the Act.

3. MISSION; GOALS; PHILOSOPHY

3.1 Commitment. The Charter School has set forth in the Oregon Public Charter School Application (the "Application") submitted by THE CHARTER SCHOOL to the District on August 2, 2011, the mission, goals, and philosophy described generally in Sections 3.2 to 3.4 below, and the Charter School will implement its educational program in a manner consistent with the stated mission, goals, and philosophy stated in the Application and this Charter.

3.2 Mission Statement. The mission of the Charter School is educating for global fluency by developing Chinese & English dual-language skills, nurturing cultural adaptability and inspiring excellence in our students for a positive impact in our world .

3.3 Goals. The goals of the Charter School are that through early and sustained immersion in the Mandarin Chinese language and Chinese culture, students will achieve at a high academic level, be highly proficient in two languages and develop sensitivity and appreciation for other cultures.

3.4 Philosophy. The philosophy of the Charter School is that all students should learn a second language, beginning in elementary school, in order to master that language, because learning a second language expands opportunities to communicate with others, to work in an increasingly competitive worldwide economy, and to understand the diversity of cultures.

4. COMPLIANCE WITH LAWS

4.1 Applicable Laws. THE CHARTER SCHOOL will comply with all applicable federal and state laws, local ordinances, and regulations, as amended from time to time, including, but not limited to:

All laws listed in ORS 338.115 in effect as of the Effective Date of this Agreement;

4.2 Elementary and Secondary Education Act. The Charter School is subject to the assessment and accountability provisions of the Elementary and Secondary Education Act ("ESEA") that apply to charter schools, and the Charter School will cooperate with all District efforts to ensure compliance with ESEA, including, without limitation, the potential designation of the Charter School as a school in need of comprehensive or targeted improvement. The Charter School agrees to implement all conditions required by those designations; and will satisfy all other state and federal requirements with respect to assessment and accountability under ESEA that apply to charter schools.

5. EDUCATIONAL PROGRAM

5.1 Overview. THE CHARTER SCHOOL agrees to design and implement the educational program described to the Board and in the Application, as amended by this Charter. THE CHARTER SCHOOL agrees that:

5.1.1 All English Language Arts classes must be taught in English by a person proficient in the English language;

5.1.2 In kindergarten and first and second grades, 65 percent of daily instruction will be given in Chinese and 35 percent will be given in English;

5.1.3 In third, fourth, and fifth grades, 50 percent of daily instruction will be given in Chinese and 50 percent will be given in English;

5.1.4 In sixth, seventh, and eighth grades, 35 percent of daily instruction will be given in Chinese and 65 percent will be given in English;

5.1.5 It will provide differentiated instruction in all classes;

5.1.6 Immersion teaching techniques will be incorporated in classes instructed in Chinese to ensure student success in Chinese learning acquisition;

5.1.7 The curriculum will be fully aligned with Oregon curriculum state standards, and the District's learning targets will serve as a guide for curriculum unit development and assessment;

5.1.8 The educational program implemented will meet the requirements of state and federal law, including, without limitation, Oregon content standards described in ORS 329.045, and other requirements concerning subjects of instruction and content standards;

5.1.9 All instructional materials will align with applicable Oregon State Standards, and the Charter School's education program set forth in this Charter. The Charter School shall notify the District in writing of its intent to utilize new curriculum 60 days in advance of its use; and

5.1.10 Its program will fully align with the District's goal as provided in the District's Strategic Plan in effect as of the date of this Agreement for all students to show continuous progress toward their personal learning goals, developed in collaboration with teachers and parents, and to be prepared for post-secondary education and career success. The Charter School agrees that when future amendments or restatements of the District's Strategic Plan are proposed, it will consider such proposals in good faith and align its program to such amendments or restatements provided that such amendments or restatements do not require the Charter School to materially alter its educational program in effect as of the date of such proposed amendment or restatement of the District Strategic Plan. To the extent any such amendments or restatements of the District Strategic Plan are anticipated to materially impact the Charter School's educational program, the District shall notify the Charter School and seek the Charter School's input and approval prior to adoption of such amendments or restatements..

5.2 Curriculum. The Charter School must make a copy of its curriculum, including instructional materials, learning targets, and written philosophies and values, available for inspection by the District at the Charter School during normal school hours.

5.3 Grades Served. The Charter School may provide instruction to students in kindergarten through eighth grade.

5.4 Minimum Instructional Hours. The Charter School will annually adopt and implement a school calendar which provides the students in each grade level with instructional hours in accordance with OAR 581-022-2320 and will ensure that those hours are met.

5.5 Educational Objectives. The Charter School agrees to and commits itself to the educational objectives described in the Application. Those objectives include the following:

5.5.1 That all of the students achieve at a high level in all academic subjects, including Mandarin Chinese, English language arts and mathematics;

5.5.2 That all of the students meet or exceed national and state standards as measured by standardized tests;

5.5.3 That all students speak, read, and write in Mandarin Chinese appropriate to their age level and instruction model; and

5.5.4 That all students acquire an acute cultural understanding of China and other countries of the world for more effective participation as global citizens.

5.6 Student Assessment. The Charter School will assess student performance (a) in the manner described in the Application, (b) as provided in ORS 338.115(1)(L), and (c) in a manner consistent with assessments administered by the District to its elementary students from time to time, including assessments required for any District dual language programs. The assessments will include:

5.6.1 Administering to each student each school year the required State assessments to the extent the District requires its students to take such assessment;

5.6.2 Administering to each ELL Student (defined in Section 7 below) each school year the English Language Proficiency Assessment;

5.6.3 Administering to each second-, third-, and fourth-grade student in the spring of each school year, the Chinese version of the Student Oral Proficiency Assessment (SOPA) or such other assessment as may be approved in writing by the District;

5.6.4 Administering to each fifth-grade student in the spring of each school year, the Chinese version of the Standards-based Measurement of Proficiency (STAMP 4se) to assess all four skills (Chinese listening, speaking, reading, and writing); and

5.6.5 Administering to each eighth-grade student in the spring of each school year, the Chinese version of the Standards-based Measurement of Proficiency (STAMP 4se) to assess all four skills (Chinese listening, speaking, reading, and writing). For students who have demonstrated proficiency of Chinese through this assessment, and for whom the District receives evidence that the student has a score demonstrating proficiency, the District agrees to transcript the student's achievement of the Oregon Seal of Multiliteracy in Chinese on their high school

transcript during their 9th grade year. Students wishing to receive high school credit for their proficiency in Chinese may do so through the district's Credit by Proficiency process.

5.7 Student Achievement. All of the Charter School students must meet the District's learning targets for each grade level for each subject. The Charter School will be deemed to have met the student achievement requirements of this Charter if, on a subject-by-subject basis, the percentage of Charter School students meeting or exceeding achievement standards on State assessments in English language arts, mathematics, and science is greater than or equal to the corresponding percentage for students enrolled in the District's dual language programs. Based on the Charter School's demonstrated academic performance during the term of the initial charter agreement, notwithstanding the foregoing, the District agrees that it will not terminate this Charter solely for the Charter School's failure to meet student achievement requirements for any school year so long as (a) the Charter School met student achievement requirements for the immediately preceding school year, and (b) the Charter School develops and implements a plan of improvement to address deficiencies and to improve student achievement in areas where the Charter School failed to meet or exceed district percentages. The Charter School shall develop such plan within sixty (60) days of receipt of final test scores indicating such failure and shall deliver a copy of the plan to the District upon completion of the plan. The District may terminate the Charter if the Charter School failures to meet student achievement requirements in two consecutive school years.

5.8 Nonsectarian. The Charter School must operate in all respects as a nonreligious and nonsectarian public school, and in no event may the Charter School or THE CHARTER SCHOOL be affiliated with any nonpublic sectarian school or any religious organization. But THE CHARTER SCHOOL is not prohibited from leasing space or facilities from or to nonpublic sectarian schools or religious institutions.

5.9 Health Services. The Charter School acknowledges that it is legally responsible to comply with OAR 581-022-2220 with respect to Health Services for its students. The Charter School may contract for District services in order to comply with the Charter School's legal obligations under OAR 581-022-2220. The Charter School and the District shall mutually agree on the cost of these services provided that the Charter School shall have the ability to purchase such services at the lower of the District's actual cost or the cost at which the District purchases such services from third-party vendors.

The District acknowledges that it is responsible for Health Management planning for health services related to the student's disability and outlined in a student's IEP. The District health services staff may delegate the provision of medical tasks to the Charter School staff. The Charter School and the District shall mutually agree on the cost of these services to be paid by the District provided that such cost fully reimburses The Charter School for all cost incurred by the Charter School to provide such services.

6. ENROLLMENT

6.1 Generally. Student enrollment in the Charter School is voluntary. All students who reside within the District and apply for and qualify for admission are eligible for enrollment at the Charter School if space is available. If the number of applications from students in the

District exceeds the capacity of a program, class, grade level, or building, the Charter School will select students through an equitable lottery selection process, in accordance with the terms of ORS 338, which may include a weighted lottery for historically underserved students, if allowed by applicable law.

6.2 Priority Admissions. After the Charter School has been in operation for one or more years, it may give priority for admission only as permitted by ORS 338.125(1) to students who (a) were enrolled in the Charter School in the prior year, or (b) have siblings currently enrolled in the Charter School who were enrolled in the Charter School in the prior year.

6.3 Nonresident Admission. Students who do not reside in the school district are eligible for enrollment in the Charter School if space is available. Nonresident students may be considered for enrollment at the Charter School after all resident students who have applied for and qualified for admission have been admitted, and only if the Charter School has adequate space and staff to accommodate nonresident students.

6.4 Student Registration. Upon a student's admittance to the Charter School, the Charter School will ensure that an enrollment form, in a form reasonably acceptable to the District, is completed for the student before he or she attends the first day of school.

6.5 Minimum Enrollment. The Charter School must maintain an active enrollment of at least 25 students. Active enrollment for purposes of this Charter means the total number of eligible students enrolled in and regularly attending the Charter School with fewer than ten consecutive days of absences. The District may terminate this Charter as a failure to meet the terms of this Charter under Section 21.1.1 of this Charter, if fewer than 25 students have enrolled by August 15 of each year, or if enrollment falls below that number for two consecutive months.

6.6 Maximum Enrollment. The maximum number of students who may be actively enrolled in the Charter School is limited to 600 during the term of this Charter.

6.7 Active Roll. A student must be entered on and withdrawn from the Charter School's active roll in accordance with District policies and OAR 581-023-0006.

6.8 Nondiscrimination Standards. The Charter School may not limit admission or discriminate against any person on the basis of actual or perceived race, color, religion, gender, sexual orientation, gender identity, gender expression, national origin, marital status, age, disability, linguistic background, culture, or geographic location, the terms of an individualized education program, income level, proficiency in the English language or athletic ability, but may limit admission to students within a given age group or grade level. Additionally, the Charter School may not discourage students otherwise eligible to attend the Charter School, including any student with special needs, from applying to or attending the Charter School. The Charter School shall have the option to develop a proposal to be submitted to and approved by the District that will allow the Charter School to implement Chinese language proficiency requirements for students who enroll in the Charter School after being enrolled in non-Chinese language immersion elementary educational programs to ensure sufficient Chinese language proficiency at a level that will allow the student to maximize his or her performance and achievement in the Charter School's educational program. Such proposal shall comply with

applicable state and federal law. This provision shall not be construed to obligate the District to approve any such proposal.

6.9 No Dual Enrollment. Without the District's prior written approval, the Charter School shall not permit a student to attend the Charter School on a full-time or part-time basis if such student attends or is enrolled, on a full-time or part-time basis, in another public school or another public charter school. If the Charter School, or any of its teachers, employees, or staff becomes aware that any the Charter School student is enrolled or attending another public school, another public charter school, or a non-public school on a full-time basis or part-time basis, the Charter School will notify the District in writing within three business days and will request that the parent of such student take appropriate action to reduce the student's enrollment and attendance to one school.

7. ENGLISH LANGUAGE LEARNERS

The Charter School must comply with all federal, state, and local laws, ordinances, rules, and regulations, and all District policies regarding service to any student who is an English Language Learner ("ELL Student"), including without limitation, providing the services required under ORS 336.079, complying with Oregon content standards described in ORS 329.045, and complying with other requirements concerning subject of instruction and content standards. To enable ELL Students to acquire English language proficiency, the Charter School must implement the ELL program described on the attached Exhibit A.

8. STUDENTS WITH DISABILITIES

8.1 Generally. The Charter School will comply with all District policies and regulations and all requirements of federal and state law concerning the special education of school-aged children who are eligible under the Individuals With Disabilities Education Act ("IDEA"). The term "special education student" means a student or prospective student of the Charter School who is eligible for special education and related services under IDEA or has an Individualized Education Program under IDEA ("IEP").

8.2 Application and Enrollment. The enrollment form for each student at the Charter School must ask whether the student has an IEP. For any prospective student with an IEP, the Charter School will notify the District within three school days after enrollment, and a representative from the Charter School will attend the IEP team meeting at which the team will determine whether or not the Charter School is an appropriate placement for the student. Any student with an IEP whose application is accepted will receive a conditional acceptance, which will become final if the IEP team determines that the Charter School is an appropriate placement.

8.3 Nonresident Students. Under ORS 338.165(1)(c), students enrolled at the Charter School and eligible for special education and related services shall be considered students of the District for purposes of data collection and reporting. Additionally, under ORS 338.165(1)(a), the District shall be responsible to identify, locate and evaluate students enrolled at the Charter School to determine which students may be in need of special education and related services and shall receive funding from the State School Fund for students who are eligible for special education and related services who are enrolled in the Charter School.

8.4 Administering IEPs. The Charter School will work closely with the District to ensure that any required special education and related services are provided and will make any required accommodations. The parties recognize that there will likely be several methods or "delivery mechanisms" for providing these services, and because there is no way to know in advance the specific needs of all special education students who will enroll at the Charter School, there is no way to specify in this Charter anything more than a framework for administering the IEPs. The framework is as follows:

8.4.1 The District is responsible for ensuring the provision of necessary special education programs and services for any special education student enrolled at the Charter School and the District will retain all funding for its special education students, including additional funding pursuant to ORS 327.013(1)(c)(A)(i);

8.4.2 The IEP team will evaluate the placement of each enrolled special education student during the school year, as the IEP team deems appropriate, and is responsible for the content of the IEP and the provision of a free appropriate public education for the student;

8.4.3 The Charter School will be responsible to (a) have a staff member on the IEP team of each enrolled special education student, (b) work closely with the IEP team to determine how to meet the goals of the IEP and how to arrange for the special accommodations and services required, (c) abide by the IEP team's decision in all areas and not change a student's IEP without IEP team action, (d) provide substitutes for the Charter School staff who are required to attend IEP meetings related to a special education student, and (e) comply with all District procedures, policies, and regulations, and the requirements of federal and state law concerning the education and discipline of children with disabilities;

8.4.4 If the IEP team determines that delivery of certain special education services is best provided by the Charter School, the Charter School will (a) ensure that its staff receives any training necessary for the delivery of such services, and (b) negotiate a separate contract with the District under which the District will compensate the Charter School for the special education services that the Charter School provides;

8.4.5 For those services that the IEP team determines would be best delivered by District employees, the Charter School will cooperate with District staff to assist in the effective delivery of the services, which might include on-site or pull-out service delivery and the Charter School will provide a space on-site where students can receive services;

8.4.6 Unless otherwise agreed by the parties in writing, the District shall not be obligated to compensate the Charter School for accommodations or modifications that the Charter School is required to provide in accordance with federal and state laws concerning persons with disabilities; and

8.4.7 The District, in consultation with the IEP team, has the discretion to determine which specialized programs and services it will provide, if any, at the Charter School, as opposed to at a District location. To the extent the provision of such services at the Charter School causes the Charter School to incur additional expense, other than expenses described in

Section 8.4.6, the District agrees to reimburse the Charter School for such expense in an amount to be agreed upon by the parties pursuant to Section 8.4.4.

8.5 Child Find; Accepted Students Later Determined to Be Special Education Students. Although the "Child Find" responsibility under IDEA remains with the District, the Charter School will work closely with the District to ensure that these responsibilities are carried out with respect to students enrolled in the Charter School. The Charter School will immediately notify the District if the Charter School suspects that a student may need evaluation to determine eligibility for special education. The Charter School must comply with the District's practices and policies for referral of students for evaluation. Any student referred for evaluation will remain enrolled at the Charter School unless an IEP team determines that the Charter School is not the appropriate placement for that student. The Charter School will ensure that at least one of its teaching staff has been trained in the Child Find process. The District will, to the extent possible, make available to the Charter School's teachers, Child Find training that is available to District teachers.

8.6 Section 504. The Charter School acknowledges that it is legally responsible to comply with Section 504 of the Rehabilitation Act of 1973, the Americans with Disabilities Act of 1990 and ORS Chapter 659 with respect to its students, staff and patrons. The Charter School may contract for District services in order to comply with the Charter School's legal obligations under Section 504 of the Rehabilitation Act of 1973, the Americans with Disabilities Act of 1990 and ORS Chapter 659. The Charter School and the District shall mutually agree on the cost of these services.

9. RECORDS

9.1 Weighted Average Daily Membership. The Charter School will identify and count, and keep accurate records of: (a) its number of enrolled students and their days present and absent; (b) attendance; (c) the number of enrolled special education students; (d) the number of students eligible for and enrolled under ORS 336.079 (relating to ELL Students); (e) other data required in order to calculate average daily membership or weighted average daily membership ("ADMw"), and (f) any other information or records necessary or convenient for the District to determine funding.

9.2 Academic Records. The Charter School agrees to accurately and timely maintain all records, including student academic records, required by law and Section 9.4, and agrees to retain and disclose those records as required by law. In each annual notice of the Charter School required by the Family Education Rights and Privacy Act, the District's charter school liaison (or such other District officials designated by the District) must be listed as school officials with legitimate educational interest in the education records of the Charter School students.

9.3 Financial Records. The Charter School agrees to establish, maintain, and retain appropriate financial records for the Charter School in accordance with all applicable federal and state laws and for a period of seven years following the expiration or earlier termination of this Charter. Additionally, the Charter School must operate in accordance with generally accepted standards of fiscal management applicable to Oregon nonprofit corporations, provided that the Charter School's financial statements are prepared in conformity with Generally Accepted

Accounting Principles and that the Charter School's accounting method complies in all instances with governmental accounting requirements that apply to charter schools.

9.4 Additional Required Records. From time to time during the term of this Charter, as District policies or state requirements change, the District may provide the Charter School with a list of records and information that the Charter School is required to provide to the District and the dates that the information is due, to enable the District to meet its reporting requirements. Additionally, the Charter School must establish, maintain, and retain, in accordance with the terms of this Agreement and applicable law, the following:

9.4.1 Written policies for enrollment and admission processes;

9.4.2 A list of formerly and currently enrolled students, including each student's full legal name, student identification number (if any), birth date, address, home school district, and name and address of legal guardian;

9.4.3 Documentation required and relevant to the special-needs status of any special education student;

9.4.4 The results of the Charter School students on required assessments;

9.4.5 The Charter School's School Improvement Plan (defined in Section 12.1.3 below);

9.4.6 Documentation of all student suspensions and expulsions;

9.4.7 A list of all current staff members and teachers, including name, birth date, address, compensation, evidence of certification to teach or progress toward certification to teach (if applicable), and documentation of termination or registration (if applicable);

9.4.8 Evidence that insurance required under this Charter has been obtained and remains in full force and effect;

9.4.9 Copies of all leases or other agreements or documents relating to the Charter School facilities, and documentation of loans or other debt of the Charter School;

9.4.10 Detailed accounting of school expenditures and sources of income received for 7 years; and

9.4.11 Copies of all currently required certifications and health- and safety-related permits for occupancy of the Charter School facilities.

9.5 Student Information System.

9.5.1 Synergy is the Web-based student information system used by many Oregon school districts to manage student information to meet state and federal requirements, to provide student reports, student report cards, transcripts, and schedules.

9.5.2 The Charter School must enter student enrollment and attendance records into the student information system used by the District (currently Synergy) on a daily basis and in accordance with District policies.

9.5.3 The Charter School must (a) provide its own Internet-ready computers capable of operating the District's student information system, (b) provide computer and network access for staff to enter data into the student information system, and (c) provide technical support for its computer hardware.

9.5.4 The Charter School must provide its own computer printer and print its own reports from the student information system used by the District.

9.5.5 The District will provide the Charter School staff with support for the District's student information system and training necessary to fully utilize the student information system at a level commensurate with other District schools serving the same grades as the Charter School. Such training shall be provided at no cost to the Charter School at times to be agreed upon by the parties.

9.5.6 The Charter School must provide time for its staff to attend training for the District's student information system.

9.5.7 The Charter School staff who use the District's student information system will follow the security policies related to access to student records.

9.5.8 The Charter School may elect to use the student information system's report card process, discipline incident tracking, classroom teacher module, or other features available.

9.6 Report Cards. If the Charter School does not use the report card process available through the District's student information system, it must maintain student report cards in the format and form approved by the District.

9.7 Inspection; Review. The Charter School must promptly make available to the District, upon reasonable request, the foregoing records and any other records reasonably related in any way to operations of the Charter School or this Charter. This right will survive the termination of this Charter for a period of seven years for all financial records, and three years for all other records, or such longer period required by law or such longer period of time necessary for the District to meet its legal obligations, but the District's right applies only to records applicable to the periods in which the Charter School was operated as a public charter school.

10. POLICIES AND PROCEDURES

10.1 Generally. Within 15 days of adoption, the Charter School will provide the District with a copy of any policies or procedures adopted, amended, modified, or repealed.

10.2 Student Safety. Upon request by the District, the Charter School will provide the District with a copy of its written policies and procedures addressing student safety.

10.3 Student Discipline. The Charter School will adopt student discipline policies and procedures, including with respect to suspension and expulsion, consistent with the District's discipline policies and procedures. Additionally, the Charter School must comply with all applicable federal and state laws and regulations governing discipline of children, including laws regarding discipline of children with disabilities and due process requirements. If the Charter School disciplines a student with rights under IDEA and its state-law counterpart, the Charter School will administer discipline in a manner consistent with IDEA and state law.

10.4 Criminal Records Checks. In addition to complying with state-law requirements related to fingerprinting and criminal records checks of all employees, the Charter School agrees to conduct fingerprinting and criminal records checks on any volunteer who will have unsupervised contact with students. The Charter School may not allow a volunteer to have unsupervised contact with students if the volunteer has been convicted of an offense that would preclude that individual from working in a public school in Oregon. If any individual refuses to submit to a fingerprint or criminal records check, the Charter School will not allow the person to have unsupervised contact with students.

10.5 Tuition. The Charter School will not charge tuition to students, other than tuition for before- or after-school programs administered by the Charter School.

10.6 Fund-Raising. As provided in ORS 338.125(4), the Charter School may conduct fund-raising activities, but it may not require a student to participate in fund-raising activities as a condition of admission to the Charter School.

10.7 Free and Reduced-Price Meals. The Charter School will provide free and reduced-price meals to eligible students in accordance with federal and state law.

10.8 Transportation. The Charter School is responsible for providing transportation to students who reside within the boundaries of the District and who attend the public charter school, all pursuant to the terms of ORS 338.145. The District will not provide transportation to the Charter School students except as required by the Act or as otherwise set forth in this Agreement. The parties recognize that depending on the location of the Charter School, existing District bus routes may not have capacity for any or all of the Charter School students or may not be adequate.

10.9 Services and Support Provided by the District. Except as expressly agreed in writing by the District, as set forth in this Agreement, or required by law, the Charter School will not be entitled to the use of or have access to District services, supplies, or facilities. Notwithstanding the foregoing in addition to the services set forth in Section 10.10 of this Agreement, and where allowed by vendors, the District shall allow the Charter School to

purchase other services, supplies and equipment from vendors at the cost the District pays for such services and equipment. Such services, supplies and equipment shall include, but not be limited to, professional development, photocopiers, nursing services, transportation services, busses and other vehicles, security services, office supplies, curriculum, landscaping supplies and equipment, and other reasonable and appropriate educational services, supplies and equipment to be utilized in the operation of the Charter School. Regarding professional development, the District agrees to include notification to the Charter School staff of professional development opportunities that arise from time to time for District staff and Charter School staff shall be allowed to participate where such participation does not result in additional cost to the District. Where there is additional cost, and subject to availability, Charter School staff may participate and pay such costs or fees of attendance at the rate being paid by the District.

10.10 Computer Hardware and Software Purchasing and Licensing: . The District agrees to include the Charter School as a District school in computer hardware and software purchasing, curriculum, and licensing agreements to enable the Charter School to purchase computer hardware, software, curriculum adopted by the District, licenses and related items at the same cost as other District schools, provided that such inclusion is (a) at no additional cost to the District, (b) allowed by the terms of such purchasing or licensing agreements, and (c) results in a cost savings to the Charter School. In the event the District incurs additional costs or expenses as a result of this Section 10.10, the Charter School shall reimburse the District for all such additional costs and expenses. Notwithstanding the foregoing, the District agrees to allow the Charter School to purchase District-approved and required technology interventions at District pricing levels, except to the extent this would cause the District to be in breach or violation of any applicable contract, license, or agreement, and provided that the District does not incur any additional cost, expense, or liability.

10.11 School Calendar. The Charter School's school calendar will fully align with the District's school calendar. The Charter School must not hold school on any day that the District's students are not required to attend school, including, without limitation staff development days, snow days, furlough days, and grading days.

10.12 Complaint Procedure. The Charter School will establish a process for the prompt resolution of a complaint by any parent or guardian of a student who attends the Charter School. The Charter School's complaint procedure will:

10.12.1 Be in writing available at the main office and in a form available on the charter school's website;

10.12.2 Include the name of the person, position, or office with the responsibility for responding to the complaint; and

10.12.3 Specify the time period during which the complaint will be addressed and a final decision issued. If the complaint procedure has multiple steps, the procedure must establish the time period for each step as well as the overall time period for completing the complaint procedure.

11. SCHOOL LOCATION

11.1 Generally. Any location used by the Charter School for school must comply with all applicable local, state, and federal laws and regulations, including, but not limited to, those relating to accessibility, construction, fire, and safety, and zoning and land use codes for school use and must be reasonably acceptable to the District. Additionally, the Charter School must provide the District with a copy of any lease, purchase agreement, or other binding agreement relating to a school facility for the Charter School and forward a copy of the agreement to the District within 30 days of its execution. The District shall make available to the Charter School a list of vacant or unused public buildings that may be suitable for operation, in whole or in part, of the Charter School. In the event there is suitable available space in a District-owned building (whether a portion of the building or the entire building), the District agrees to negotiate in good faith to allow the Charter School to lease such space from the District.

11.2 Notice to District. The Charter School must notify the District if:

11.2.1 There is a material change in the condition of any portion of its school facilities, such as through flood, fire, or other unanticipated circumstance, which notification must be made within two business days of the occurrence of the event;

11.2.2 There is any written allegation that the Charter School has breached any provision of a lease, deed restriction, or other agreement related to its school facilities, which notification must be made within five business days of the receipt of the written allegation; or

11.2.3 The Charter School's board of directors has passed a resolution to pursue relocation of the Charter School facilities, or has authorized execution of a lease or purchase agreement for new school facilities, which notice must be made within 10 business days of passage of the resolution.

12. REPORTING

12.1 Annual Reporting.

12.1.1 By September 15 of each school year, the Charter School must submit to the Board:

(a) A list of all teachers, staff members, and administrators at the Charter School, including, for each person, name, compensation, the position or description of duties, the date of the initiation of the criminal background investigation required by Oregon law, and licenses, endorsements, certifications, degrees, and qualifications;

(b) A summary of currently enrolled students by grade, including the number of students returning from the previous year and the number of students by home district; and

(c) Proof of insurance required under this Charter.

12.1.2 No later than September 30 of each year, the Charter School must deliver to the Oregon Department of Education and the District a written report, according to ORS 338.095(1), on the performance of the Charter School and its students and disclose in its report sufficient information to allow the Oregon Department of Education and the District to make a determination of the Charter School's compliance with the requirements of the Act.

12.1.3 For each year of operation, the Charter School must prepare a School Improvement Plan (the "School Improvement Plan") and make it available to the Board and the parents of the students of the Charter School and interested community members no later than the date such report is due for District schools. The School Improvement Plan must include an analysis of student performance data and growth in achievement, analysis of accomplishment of the previous year's established goals, the revised improvement goals, the action plan to achieve those goals, and a procedure to evaluate the progress towards meeting the goals. The parents and community served by the Charter School must be given an opportunity to provide input on the School Improvement Plan.

12.1.4 The Charter School must timely submit to the Oregon Department of Education, or at District's option, cooperate with District so the District may timely submit to the Oregon Department of Education, class and staff reports in accordance with all applicable rules and regulations.

12.2 Reports to Board. Each September the Charter School must report to the Board on the Charter School and the performance of the Charter School students. The report shall be a report about the prior school year, shall include the student performance report described in Section 12.1.2. The report shall also include the following information:

12.2.1 A summary of the achievement of students;

12.2.2 A financial update;

12.2.3 A summary of classes available and to be added;

12.2.4 The current enrollment;

12.2.5 Update about any wait lists for students;

12.2.6 A summary of training given to and received by staff and teachers;

12.2.7 Goals for improvement for the current school year and beyond;

12.2.8 A summary of the staff and their qualifications; and

12.2.9 Any other information reasonably requested by the Board in advance or at the Board meeting.

12.3 Quarterly Reports. On or before October 25th, January 25th, April 25th, and July 25th, the Charter School must deliver to the District a report including the following related to the prior fiscal quarter:

12.3.1 A list of any students expelled;

12.3.2 Documentation of any changes in any certificate of occupancy, or other health-or safety-related permits, applications, or filings;

12.3.3 Any correspondence, notices, or determinations from the Internal Revenue Service related to maintenance of the Charter School's tax-exempt status;

12.3.4 Any correspondence, notices, or determinations from the Oregon Secretary of State or the Oregon Department of Justice Charitable Activities Section related to the Charter School's status as an Oregon nonprofit corporation;

12.3.5 A copy of any changes made to the Charter School's articles of incorporation or bylaws;

12.3.6 A list, including name and contact information, of any individuals joining the Charter School's board of directors;

12.3.7 A list of any newly hired employees, including the names of the employees, the position or description of the employees' duties, the date of the initiation of the criminal background investigation required by Oregon law, and the employees' licenses, endorsements, certifications, degrees, and qualifications;

12.3.8 The Charter School's balance sheet, a statement of revenues and expenditures for the quarter ended, a statement of revenues and expenditures year-to-date, a budget projection summary, all financial statements must reflect all funds, including grants, and must provide separate reports for each fund and must be in a format provided or approved by the District; and

12.3.9 A list, including name and contact information, of any individuals who resigned from or were terminated as employees of the Charter School.

12.3.10 The April quarterly report shall include projected enrollment by grade for the following school year as well as a staffing plan based on the projected enrollment.

12.4 Ongoing Reports.

12.4.1 Within five business days after the completion of the first week or partial week of any school year, the Charter School must provide the District with a report for the first week or partial week of such school year. Such report shall include the name of each enrolled student, the grade level of each student, whether a student is an ELL student, whether a student is a special education student, whether a student is eligible for free or reduced lunch, other data required in order to calculate ADMw, and any other information or records necessary or convenient for the District to determine funding. This requirement is waived by the District if on or before the due date for each report, the District is able to obtain all such data, information, and records from the Charter School's entries into the District's student information system.

12.4.2 On or before the 10th day of September, October, November, December, January, February, March, April, May, June, and July, during the term of this Charter, the Charter School must provide the District with a report for the prior month-ended. Such report shall include the name of each student enrolled during the prior month, the number of days present and absent during the prior month, the grade level of each student, whether a student is an ELL student, whether a student is a special education student, whether a student is eligible for free or reduced lunch, other data required in order to calculate ADMw, and any other information or records necessary or convenient for the District to determine funding. This requirement is waived by the District if on or before the due date for each report, the District is able to obtain all such data, information and records from the Charter School's entries into the District's student information system.

12.4.3 Within five days after being named as a plaintiff or defendant in any court proceeding or if any administrative enforcement proceeding is asserted against the Charter School or the Charter School arising from or related to the Charter School, the Charter School must provide the District with notice of the proceeding.

12.4.4 The Charter School must immediately notify the District and other appropriate authorities, in accordance with law, of discipline of the Charter School employees arising from misconduct that is related to students.

12.4.5 The Charter School must comply with all state and federal reporting requirements applicable to charter schools, including, without limitation, to the extent applicable to the Charter School, physical education facilities reports, physical education minutes reports, and staff assignment data. To the extent the District is required or desires to submit any report on behalf of the Charter School, the Charter School must provide the District with any data, information, or records necessary or convenient to allow or facilitate the District to timely complete and file such report.

12.5 Failure to Timely Provide Reports or Information to the District. In the event that the Charter School fails to timely provide reports or information to the District in accordance with the Section 12, above, or the annual audit report described in Section 13.4, or in accordance with any other deadlines mutually agreed to by the parties in writing, immediately upon notification to the Charter School (email notification to the person at the Charter School generally responsible for finances at the Charter School is an acceptable form of notification), the District may withhold up to 25 percent from any payment owed to the Charter School pursuant to Section 14 of this Agreement until such time that the Charter School has provided the report or information. As soon as possible, but no later than two business days after receiving the missing report or information, the District shall forward the withheld sums to the Charter School. The remedy described in this Section 12.5 is in addition to and not in substitution of any other remedies the District has under this Charter, the Act, or otherwise.

12.6 Survival of Termination. The Charter School's obligations under:

12.6.1 Section 12.1.2 will survive expiration or earlier termination of this Charter until the Charter School has made a report for the Charter School's final year, or partial year, of operation under this Charter;

12.6.2 Section 12.1.4 will survive expiration or earlier termination of this Charter;

12.6.3 Section 12.4.2 will survive expiration or earlier termination of this Charter until the Charter School has made all required reports for all full or partial months during the term of this Charter;

12.6.4 Section 12.4.3 will survive expiration or earlier termination of this Charter;

12.6.5 Section 12.4.4 will survive expiration or earlier termination of this Charter to the extent the Charter School's employee misconduct arose during the term of this Charter;

12.6.6 Section 12.4.5 will survive expiration or earlier termination of this Charter; and

12.6.7 Sections 12.3.8 will survive expiration or earlier termination of this Charter until (a) the affairs of the Charter School have been wound down in accordance with Section 23 of this Charter, and (b) the Charter School has complied with the terms of Section 12.3.8 following the final fiscal quarter, or partial fiscal quarter, of the Charter School's operations.

13. FINANCES

13.1 Annual Budget. On or before April 25 of each year, the Charter School will submit to the District the Charter School's proposed or draft balanced budget for the next fiscal year. During each fiscal year, the Charter School must immediately report to the District any material variation in expenses or revenue from the approved budget. For purposes of this Section 13.1, a material variation is a variation that exceeds the total budgeted amount for the relevant line item by 10 percent or \$50,000, whichever is less. Additionally, a revised budget must be submitted to the District no later than October 15 of each year which must take into account the latest information available regarding state funding and the Charter School's enrollment for the current year.

13.2 Fiscal Year. The fiscal year of the Charter School must begin on July 1 of each year and end on June 30 of the subsequent year.

13.3 Segregated Finances. the Charter School agrees to segregate the finances of the Charter School from the finances of all other operations of the Charter School, including, without limitation, maintaining separate financial records and financial accounts. the Charter School's obligations under this Section 13.3 will survive expiration or earlier termination of this Charter.

13.4 Annual Audit. Each year, at the Charter School's sole cost and expense, the Charter School will retain an auditor to conduct an audit of the accounts of the Charter School as required by ORS 338.095(2) and in accordance with the Municipal Audit Law, ORS 297.405 to 297.555 and 297.990, as it may be amended from time to time. The audit shall be conducted in accordance with the governmental model and conducted by an auditor licensed to perform and

experienced with municipal audits. the Charter School will deliver a copy of the final audit to the District, the Oregon Department of Education, and the State Board of Education no later than December 15 of each year during the term of this Charter. In the event that the Charter School fails to timely commence its audit, or in the event the Charter School fails to timely pay any fees or costs of its auditor for its audit services, the District may use funds withheld from the Charter School pursuant to Section 12.5 to retain an auditor to conduct the required audit or pay any unpaid fees or costs of the auditor. No later than 30 days following the Charter School's receipt of the final audit, the Charter School must deliver to the District the Charter School's plan to address any deficiencies noted in the audit. If the District believes that the Charter School's plan to address any deficiencies is inadequate, or if the Charter School fails to timely deliver its plan to the District, the District may begin the termination procedure described in Section 21.1.1 for failure to meet the terms of this Charter. The Charter School's obligations to have an annual audit under this Section 13.4 will survive the expiration or earlier termination of this Charter until the Charter School has completed the required audit for each fiscal year in which the Charter School operated as a public charter school.

13.5 Borrowing Prohibited. Without the prior approval of the Board, during the term of the Charter, the Charter School will not borrow more than 5 percent of the budgeted income for the Charter School on an unsecured basis or encumber any of its assets, except that the Charter School may borrow more than 5 percent of its budgeted income if such borrowing is solely for capital acquisitions and, in connection with such borrowing, may use the acquired assets as security for repayment of the borrowed funds, without the prior approval of the Board.

14. DISTRICT FUNDING

14.1 Percentage of General-Purpose Grant. For each school year, the District will provide funding to the Charter School in an amount equal to 85 percent of the District's General-Purpose Grant per ADMw as calculated under ORS 327.013 for students enrolled in the Charter School, unless the District is required by law to pay a percentage. The Charter School's ADMw shall include the additional 0.5 ADMw described in ORS 327.013(1)(c)(A)(ii) for each student in average daily membership eligible for and enrolled in an English as a Second Language program under ORS 336.079, but shall exclude the additional 1.0 ADMw described in ORS 327.013(1)(c)(A)(i) for each student in average daily membership eligible for special education as a child with a disability under ORS 343.035.

14.2 Percentage of Children in Poverty. In calculating the ADMw of the Charter School, it will be assumed that the Charter School has the same percentage of children in poverty families, as calculated under ORS 327.013(1)(c)(A)(v)(I), as the District.

14.3 Title I Funds. The Charter School shall be entitled to receive Title I funds or services in accordance with applicable state and federal law, and in a manner consistent with the District's established policies regarding the use and application of Title I funds to schools and programs within the District.

14.4 Payments. Within ten days of the District's receipt of the funds from the State School Fund under ORS 327.095, the District will send to the Charter School the portion of those funds, if any, that must be paid to the Charter School according to the terms of this Charter.

14.5 Limitation on District's Obligations. The financial commitment on the part of the District contained in this Charter is subject to annual appropriation by the State of Oregon. The District has no obligation to fund the operations of the Charter School to the extent that the District does not receive such funding from the State of Oregon for that purpose during the Charter term. If the District experiences any reduction or increase in state funding support, proportionate reductions or increases will be made to the funds paid to the Charter School by the District through adjustment or setoff in subsequent months.

14.6 State Law Governs. The parties intend that funding and payments be made in accordance with the requirements of state law. The parties intend that this Charter be automatically modified to conform to any changes in state law relating to the calculation of ADMw, funding provided to the District, or the funding of charter schools.

14.7 Grant Funds. The Charter School may apply for and receive grant funds from any public or private entity without the assistance, direction, or oversight of the District and will not be obligated to distribute to the District any portion of grant funds received unless expressly required by the terms or conditions of the grant.

14.8 District Right to Review. The District may, at any time and from time to time, review the number of students actually enrolled in the Charter School, compared to the enrollment reported to the District by the Charter School, and the District may adjust the funding to reflect the District's determination of the ADMw of the Charter School provided, however, that the Charter School must be given at least five-days prior written notice of such determination before any such adjustment is made.

14.9 Adjustment to Disbursements. In the event of overpayment or underpayment to the Charter School, the District will increase or decrease funding for subsequent months until the overpayment or underpayment is corrected. If, with the final payment for the school year or at the expiration or earlier termination of this Charter, the District has overpaid the Charter School, the Charter School must immediately reimburse the District for the overpayment amount. If the overpayment is not reimbursed to the District within 15 days after written request of the District, the unpaid balance will accrue interest at the rate of 8 percent per annum. If, with the final payment for the school year or at the expiration or earlier termination of this Charter, the District has underpaid the Charter School, the District must immediately pay the Charter School for the underpayment amount to the extent it receives or has received such funds. If the underpayment is not paid to the Charter School by the District within 15 days after written request by the Charter School, the unpaid balance will accrue interest at the rate of 8 percent per annum; however, in no event shall interest begin to accrue until the District has received such funds.

14.10 Retention for Other Purchased Services. The District may retain from the funding to be provided by it to the Charter School an amount equal to the cost of services to be provided to the Charter School by the District under any separate written agreement between the Charter School and the District in which the Charter School agrees to pay the District for such services.

14.11 ESD Services. The District agrees to reasonably cooperate to facilitate or assist Charter School in receiving its services that are available through the Northwest Regional

Education Service District pursuant to ORS 338.115(14), provided that District shall not incur any cost or expense in connection with such cooperation or assistance.

14.12 Transportation Reimbursement. The District will bill the Charter School for 30% of transportation and will assume responsibility for submitting transportation costs to ODE for reimbursement back to the District. A list of providers may be requested by the Charter School after July 1 each year to receive current District and ODE Approved Special Pupil Activity Bus (SPAB) list and the Charter School will be responsible for 30% of costs with these providers. Any providers not on the District approved list will require 100% of cost by the Charter School. Nothing in this Section 14.12 shall be construed to limit or restrict the Charter School's access to transportation and services described in Section 10.8 or elsewhere in this Agreement.

15. SITE VISITS

15.1 District Representatives. Members of the Board, the District's Superintendent, or the Superintendent's designee may visit the Charter School at any time during normal business hours to monitor and evaluate the Charter School's compliance with this Charter.

15.2 Annual Visit. At least annually, a member of the Board, the District's Superintendent, or the Superintendent's designee must visit the Charter School to evaluate its compliance with the terms of this Charter and the Act, and the success of the academic program. The District or its designee may prepare a written report of the findings of its evaluation, which may include the following: (a) a statement summarizing the costs of administration, instruction, facilities, instructional materials, and other categories of expenditures, and revenues; (b) a description of the assessments used to measure student progress; (c) a summary of student assessment results; (d) a description of the staffing of the Charter School, summarizing the qualifications of staff members; and (e) a description of the Charter School's educational program. If a written report is prepared, a copy must be provided to the Charter School and the Charter School must be given at least 15 days to comment on the report or provide additional information for the report, before it is finalized.

16. CORPORATE STATUS

16.1 Duties and Authority of the Charter School's Board. Subject to the limitations and provisions of this Charter and the limitations of any funding provided by the District or other revenue sources, the Charter School's board of directors will serve as fiscal agent for the Charter School and must ensure compliance with all applicable laws, rules, regulations, policies, procedures, and the terms and conditions of this Charter and the Act, and will have authority to exercise the following powers (together with the powers as provided elsewhere in this Charter or the Oregon Nonprofit Corporation Act):

16.1.1 Contracting for goods and services;

16.1.2 Preparing budgets;

16.1.3 Selecting, supervising, evaluating, and determining compensation for personnel;

- 16.1.4 Promoting and terminating personnel;
- 16.1.5 Leasing facilities for school purposes;
- 16.1.6 Making decisions affecting students' access to education, such as disciplinary decisions;
- 16.1.7 Retaining final decision-making authority regarding parent complaints;
- 16.1.8 Providing procedural safeguards to those persons (including parents, students, and employees) affected by the Charter School's execution of any governmental function with respect to providing services related to the Charter School's operation;
- 16.1.9 Accepting and expending gifts, donations, or grants of any kind, including those described in ORS 338.155(9) in accordance with the conditions prescribed by the donor and in accordance with law and the terms of this Charter, and in compliance with all state and federal laws regarding reporting of charitable contributions; and
- 16.1.10 Adoption of policies consistent with the terms of this Charter.

16.2 Nonprofit Corporation. At all times during the terms of this Charter, the Charter School must be organized as an Oregon nonprofit corporation. the Charter School has provided the District with a true and complete copy of the Charter School's articles of incorporation and bylaws. the Charter School's articles of incorporation and bylaws may not be amended, modified, or repealed in any way that is inconsistent with the terms of this Charter.

16.3 Corporate Purpose. During the term of this Charter, the Charter School's articles of incorporation must provide that one of the purposes of the Charter School is to operate the Charter School as a public charter school in a manner consistent with this Charter.

16.4 Dissolution. The articles of incorporation and bylaws of the Charter School must provide that upon dissolution of the Charter School, the assets of the Charter School that were purchased with public funds must be given to the State Board of Education, as provided in ORS 338.105(6).

16.5 Tax-Exempt Status. At all times during the terms of this Charter, the Charter School must be exempt from tax under Section 501(c)(3) of the Internal Revenue Code.

16.6 Board Composition. The board of directors of the Charter School must comprise at least five individuals, no fewer than three of whom must reside within the Portland metropolitan area. The individuals comprising the board of directors of the Charter School must collectively have financial and professional education expertise. A minimum of three individuals on the board must be parents of current Charter School students. If a member of the Charter School board of directors resigns or is removed and the number of directors on the Charter School board is less than five, the Charter School must inform the District in writing promptly and undertake good faith efforts to replace such director as soon as reasonably practicable.

16.7 Corporate Records. No later than five days after receipt of the District's request, the Charter School must provide the District with copies of any and all board minutes, any board policies, and a list of current and former board members, including contact information. The Charter School's obligation under this Section 16.7 will survive expiration or earlier termination of this Charter for a period of seven years.

16.8 Litigation. The Charter School represents and warrants that there is no litigation, claim, or arbitration, pending or threatened, against the Charter School that would affect the Charter School's ability to perform under this Charter.

17. INSURANCE

The Charter School must at all times maintain and keep in force the following insurance:

17.1 Commercial General Liability Insurance. Commercial general liability insurance (occurrence version) with coverage for bodily injury and property damage liability, personal and advertising injury liability, contractual liability, employee benefits liability, professional liability, teachers' liability, and medical payments, with a general aggregate limit of not less than \$5 million and a per occurrence limit of not less than \$3 million.

17.2 Directors' and Officers' Liability Insurance. Directors' and officers' liability insurance in an amount not less than \$800,000 for each loss and \$800,000 each policy year covering against liability arising out of wrongful acts and employment practices.

17.3 Automobile Liability Insurance. Automobile liability insurance in an amount not less than \$2 million combined single limit covering against liability for damages because of bodily injury, death, or damage to property, including the loss of ownership, operation, maintenance, or use of any automobile. The policy will include underinsured and uninsured motorist coverage at the limits equal to bodily injury limits.

17.4 Workers' Compensation Insurance. Workers' compensation insurance according to State of Oregon statutes (ORS Chapter 656), as required by law, and employers' liability insurance with limits of \$100,000 each accident, \$100,000 disease each employee, and \$500,000 policy limit.

17.5 Employee Dishonesty Insurance. Employee dishonesty insurance covering all employees and volunteers. The policy must carry limits of no less than \$100,000. Coverage must include faithful performance and loss of money and securities.

17.6 Property Insurance. Property insurance on all owned buildings and equipment and on any leased buildings and equipment if required by the terms of the lease. The insurance must be written to cover the full replacement cost of the building and equipment on an all-risk-of-direct-physical-loss basis, including earthquake and flood perils.

All policies of insurance must be issued by a licensed and admitted insurance carrier with a rating not less than A from A.M. Best. The District must be listed as an additional insured on all policies of insurance described in Sections 17.1 and 17.3. All policies of insurance

must provide for 30 days' prior written notice to the District before cancellation or material change thereto. The Charter School must show proof of all the above insurance within two business days after receipt of a written request from the District.

18. STAFF QUALIFICATIONS

18.1 English Language Arts. All English Language Arts classes at the Charter School will be taught in English by a teacher proficient in the English language.

18.2 Classes Taught in Chinese. All classes at the Charter School taught in Chinese will be taught by a bilingual Chinese/English teacher fluent in Chinese.

18.3 ELL Classes. All teachers providing programs specialized for ELL Students will be taught by a teacher with an English for Speakers of Other Languages ("ESOL") endorsement.

18.4 Licensure. Classroom instruction will only occur in the presence of a teacher with a valid Oregon license or charter school registry.

19. RELATIONSHIP BETWEEN THE CHARTER SCHOOL AND THE DISTRICT

19.1 Independent Contractor. The Charter School is an independent contractor providing charter school educational services. None of the provisions of this Charter may be construed to create a relationship of agency, representation, joint venture, ownership, or control of employment between the parties other than that of independent parties contracting solely for the purpose of effectuating this Charter.

19.2 No Employment. The District is not the employer of the Charter School or its employees, agents, or contractors and will not collectively bargain with the Charter School's employees, and neither the Charter School nor its employees, agents, or contractors are under the direction or control of the Board or the District, except as required by law or this Charter. Neither the District nor its employees, agents, or contractors are employees or agents of the Charter School.

19.3 Separate Legal Entity. The Charter School is a separate legal entity and may sue or be sued. The Charter School is in no way affiliated with the District, and the District has no obligation or responsibility for any obligation or responsibility of the Charter School or the Charter School.

19.4 Third-Party Contracts. The Charter School has no authority to enter into a contract that would bind the District. The Charter School must clearly indicate to vendors and other entities and individuals with which or with whom the Charter School enters into an agreement or contract for goods or services that any and all obligations of the Charter School and the Charter School are solely the responsibility and obligation of the Charter School and are not the responsibility or obligation of the District.

19.5 Nonendorsement. The Charter School acknowledges that the granting of this Charter in no way represents or implies endorsement by the Board or the District of any method

of instruction, philosophy, practices, curriculum, or pedagogy used by the Charter School or its agents, nor does this Charter constitute a guarantee by the Board or the District of the success of the Charter School in providing a learning environment that will improve student achievement or achieve the mission or goals set forth in the Application. In no event, however, does this Section 19.5 imply that the District may not exercise its termination rights under this Charter for the failure of the Charter School to meet the terms or conditions of this Charter, or for failure to provide the type of curriculum required by law or this Charter.

19.6 Survival of Terms. The terms of this Section 19 will survive the expiration or earlier termination of this Charter.

20. INDEMNIFICATION

20.1 Indemnification Obligations of the Parties. Each party to this Charter agrees to indemnify and defend the other party to this Charter and the other party's board members, directors, officers, employees, contractors, and agents, and hold them harmless from and against any and all costs, expenses, attorney fees, damages, liabilities, claims, demands, grievances, injuries, and losses (collectively, "Liabilities") in any way related to (1) any activities or operations of the indemnifying party, (2) any debt or contractual obligation of the indemnifying party, or (3) any negligence or wrongful act or omission of any of the indemnifying party's board members, directors, officers, employees, contractors, or agents, including acts or omissions related to special education obligations under IDEA or equivalent state or federal law. This Section 20.1 shall not be deemed a relinquishment or waiver of any kind of applicable limitations of liability provided in the Oregon Tort Claims Act. Additionally, this Section 20.1 shall not cause the District to have any obligation to indemnify, defend, or hold the Charter School harmless for any Liabilities incurred as a result of an act or omission of the District or any of its board members, directors, employees, contractors, or agents that is later determined to be required by law or this Charter. Neither party shall be required to indemnify the other to the extent a claim or liability arises from the other party's own negligence or intentional wrongful conduct.

20.2 District's Immunity. Nothing in this Charter may be construed to limit, diminish, or waive in any way the immunity provisions of ORS 338.115(7), and those provisions must be strictly enforced.

20.3 Risk Management. The Charter School will promptly notify the District of any threatened legal claim if the threatened claim is against the Charter School and will promptly provide the District with copies of all notices of claims. The District will promptly notify the Charter School of any threatened legal claim if such claim is with respect to the Charter School or the Charter School and will promptly provide the Charter School with copies of all notices of such claims.

20.4 Survival of Terms. The obligations of the Charter School and the District under Sections 20.1 and 20.3 will survive the expiration or earlier termination of this Charter. Any indemnified party will have the right, at its own expense, to participate in the defense of any suit, without relieving the indemnifying party of any of its obligations hereunder.

21. TERMINATION

21.1 Grounds for Termination. During the term of this Charter, the District acting through the Board may terminate this Charter on any of the following grounds:

- 21.1.1 Failure to meet any terms of this Charter or the Act;
- 21.1.2 Failure to meet the requirements for student performance described in this Charter;
- 21.1.3 Failure to correct a violation of a federal or state law that is described in ORS 338.115;
- 21.1.4 Failure to maintain the insurance described in this Charter; or
- 21.1.5 Failure to maintain financial stability.

21.2 Notice of Termination. If the Charter is terminated under Section 21.1, the District will notify the Charter School in writing at least 60 calendar days before the proposed effective date of the termination and will state the grounds for the termination. the Charter School may request a hearing by the Board regarding the proposed termination of this Charter. Such a request by the Charter School must be made in writing and be delivered to the business address of the District within 30 calendar days of the receipt of the notice of the proposed termination.

21.3 Immediate Termination. Under ORS 338.105(4), the District may terminate this Charter immediately and close the Charter School without complying with the notice provisions set forth in Section 21.2, if the Charter School is endangering the health or safety of the students enrolled at the Charter School.

21.4 The Charter School's Appeal Rights. Nothing in this Section 21 may be construed to limit the Charter School's appeal rights set forth in ORS 338.105.

21.5 Student Education Records. Within 5 business days after the termination of this Charter, the Charter School must transfer all student education records to the administrative office of the District.

22. REPRESENTATIONS, WARRANTIES, AND COVENANTS.

22.1 The Parties' Representations, Warranties, and Covenants. In addition to any express representations, warranties, or covenants of either party contained herein, the following constitute representations, warranties, and covenants of each party to the other:

22.1.1 Each party has the legal power, right, and authority to enter into this Charter.

22.1.2 All requisite corporate action has been taken by each party in connection with entering into this Charter, and no further consent of any other party is required.

22.1.3 The persons executing this Charter on behalf of each party have the legal power, right, and actual authority to bind the party to the terms and conditions of this Charter.

22.1.4 This Charter will be a valid and legally binding obligation of and enforceable against each party in accordance with its terms.

22.1.5 Each party represents and warrants that neither the execution and delivery of this Charter, nor the incurring of the obligations set forth herein, nor compliance with the terms of this Charter conflict with or result in the material breach of any terms, conditions, or provisions of, or constitute a default under, any bond, note, or other evidence of indebtedness, or any contract, indenture, mortgage, deed of trust, loan, lease, or other agreement or instrument to which the party is a party.

22.2 The Charter School's Representations, Warranties, and Covenants. In addition to any express representations, warranties, or covenants of the Charter School contained herein, the following constitute representations, warranties, and covenants of the Charter School to the District:

22.2.1 Except as disclosed to the District in writing, The Charter School has not violated and is not in breach of any contract or agreement to which it is a party.

22.2.2 No attachments, execution proceedings, assignments for the benefit of creditors, insolvency, bankruptcy, reorganization, or other proceedings are pending or threatened against the Charter School, nor are any such proceedings contemplated by the Charter School.

22.2.3 The Charter School will notify the District within ten business days if any administrative governmental agency, dispute resolution service, court, or any body with jurisdiction or authority to make such a determination, makes a determination that the Charter School or the Charter School has acted contrary to law or in violation of any person's rights.

22.3 The Parties' Representations and Warranties Are Not Misleading. The representations and warranties of the parties contained herein are true and accurate, and are not misleading. All representations and warranties made by the Charter School are to the actual knowledge of the members of the Charter School board of directors or its officers, agents, or employees.

23. DISSOLUTION

23.1 Assets. If this Charter is terminated or the Charter School ceases operation or the Charter School is dissolved (a "Dissolution"), the assets of the Charter School that were purchased with public funds must be given to the Oregon Board of Education and must be disbursed as provided by the Act. If any assets were obtained with public grant funds, and the grant has no reference to ownership or distribution of assets upon Dissolution, the assets must be given to the Oregon Board of Education and must be disbursed as provided by the Act.

23.2 Student Records. In the event of a Dissolution, permanent student records must be transferred to the District.

23.3 Winding Down. In the event of a Dissolution, the Charter School is responsible to wind down the operations of the Charter School and to pay any and all of its debts, loans, liabilities (contingent or otherwise), and obligations. the Charter School must cooperate with the District to effect the orderly closing of the Charter School, including with respect to notification to students and parents of the Charter School of the Dissolution and arranging for placement of the Charter School students in schools in their home districts. In no event will the termination of this Charter or the dissolution or winding up of the affairs of the Charter School cause the District to be responsible for or assume any liability incurred by the Charter School. The parties understand that the District will have no obligation or responsibility to help employees of the Charter School find new employment following a Dissolution, except as specifically required by the Act.

23.4 Termination by The Charter School. The Charter School may terminate this Charter or dissolve or close the Charter School only as set forth in ORS 338.105(7), and after providing the District with written notice of its intent to do so at least 30 days before the end of the current school year.

24. GENERAL

24.1 Policies and Procedures. To the extent that the Charter School desires to implement specific policies, procedures, or other specific terms of operation that supplement current practices or this Charter, the Charter School will be permitted to do so, provided that the policies, procedures, and terms of operation are not contrary to the terms or purpose of this Charter or applicable law.

24.2 Construction. The parties intend that the provisions of the Act strictly apply to and be incorporated into this Charter. The parties intend that to the greatest extent possible, the Act and this Charter be construed so as, to the maximum extent possible and unless there is a contradiction, to give effect to each and every term.

24.3 Application. The parties acknowledge that the Application was prepared solely by Applicant. As such, the District shall have no obligation under the Application and the terms of the Application are not binding on the District. However, the District agreed to enter into the initial Charter Agreement based on the representations and warranties of Applicant in the Application, therefore, Applicant agrees that the terms of the Application (and each modification or supplement thereto made by Applicant), except to the extent the terms of this Charter conflict with or contradict any of the terms of the Application, are binding upon and may be enforced against Applicant. The foregoing notwithstanding, this Charter will supersede and control over any conflicting language in the Application.

24.4 Entire Agreement. This Charter contains all terms, conditions, and understandings of the parties relating to its subject matter. All prior representations, understandings, and discussions are merged herein and superseded by this Charter.

24.5 Amendments. This Charter will automatically be deemed to be amended to conform to any amendment to the Act or any ordinance, regulation, order, or rule related to the Act, if such amendment is applicable to this Charter or the parties by its terms, but shall not be

automatically included if the amendment is not required by law to apply to this Charter or the parties. Any other amendment or modification to this Charter must be in a writing signed by the parties and authorized by the Board.

24.6 Applicable Law. The parties intend that where this Charter references federal or state law, they be bound by any related regulations and any amendment to those laws or regulations, upon the effective date of the amendment.

24.7 Invalidity. If any provision of this Charter or any application of this Charter to the Charter School or the Charter School is found contrary to law, or is deemed to be unenforceable or invalid for any reason, the provision or application will have effect only to the extent permitted by law. Either party may revoke this Charter if a material provision is declared unlawful, unenforceable, or invalid by any court of competent jurisdiction.

24.8 Governing Law. This Charter will be governed and construed according to the laws of the State of Oregon.

24.9 No Waiver. Neither party will be deemed to have waived any breach by the other party unless the waiver is in writing and specifically provides that the breach is waived. Additionally, no waiver of any breach of any covenant or provision contained herein will be deemed a waiver of any preceding or succeeding breach thereof, or of any other covenant or provision contained herein. No extension of time for performance of any obligation or act will be deemed an extension of the time for performance of any other obligation or act.

24.10 No Third-Party Beneficiary. This Charter does not create any rights in any third parties who have not entered into this Charter, nor is any third party entitled to enforce any rights or obligations that may be possessed by either party to this Charter.

24.11 Nonassignment. Neither party may assign any rights, benefits, or obligations under this Charter to any entity or individual without the prior written consent of the other party.

24.12 Time Is of the Essence. Time is of the essence with respect to each and every term and provision of this Charter.

24.13 Delegation by District. The parties agree and acknowledge that the functions and powers of the Board may be exercised by the Superintendent of the District, or by the Superintendent's designee, provided that any decision regarding renewal, nonrenewal, or termination of this Agreement may be made only by the Board.

24.14 Survival of Representations. In addition to the covenants, agreements, representations, or warranties in this Charter that specifically survive expiration or earlier termination of this Charter according to their terms, the covenants, agreements, representations, or warranties made in Sections 4 (compliance with laws) and 17 (insurance requirements) will survive expiration or earlier termination of this Charter, until the affairs of the Charter School are wound up in accordance with the terms of Section 23.

24.15 Counterparts. This Charter may be executed and delivered in counterparts, each of which will be considered an original and all of which together will constitute one and the same Charter.

24.16 Notice. All notices, demands, requests and other communications shall be in writing, and shall be sent via (i) personal delivery, (ii) certified mail, return receipt requested, postage prepaid, or (iii) overnight courier service. When so delivered to an addressee as indicated below, such notice shall be deemed to have been received as of (i) the date so delivered, (ii) three (3) business days after the date so mailed, if mailed, or (iii) one business day after the date sent by overnight courier service. Notwithstanding the foregoing, the parties may agree in writing to an alternate form of delivery and addressees for the Charter School's periodic reporting requirements set forth in Section 12 and Section 13.4, and such other periodic reporting requirements as may be agreed to in writing from time to time by the parties. A party may from time to time change its address or designated individual by notice to the other party.

To the District:

Beaverton School District
1260 NW Waterhouse Avenue
Beaverton, Oregon 97006
Attention: Superintendent

With a copy to:

Beaverton School District
16550 S.W. Merlo Road
Beaverton, Oregon 97006
Attention: General Counsel

To The Charter School:

Hope Chinese Charter School
3500 SW 104th Ave
Beaverton, Oregon 97005

[Signature Page Follows]

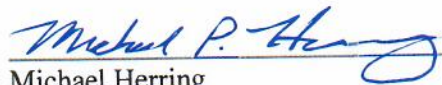
The parties have executed this Charter as of the date first written above.

BEAVERTON SCHOOL DISTRICT NO. 48

By: 
Name: Dr. Gustavo Balderas
Title: Superintendent

Date: June 29, 2023

HOPE CHINESE CHARTER SCHOOL

By: 
Name: Michael Herring
Title: HCCS Board Chair

Date: 6/26/2023

EXHIBIT A

English as a Second Language Program

1. MISSION

The Charter School's Multilingual program must ensure that all the Charter School students become proficient in listening, speaking, reading, and writing in both target languages; in this case English and Chinese, so students achieve the same high academic standards required of District students.

2. VISION

The Charter School's Multilingual program must ensure that all students including EL students, become actively engaged, well informed, articulate citizens confident in their abilities to participate in the democratic process.

3. OUTCOMES

The Charter School's Multilingual program must meet the District's goals for student language skill and proficiency learning outcomes. The Charter School understands that each ELL Student must acquire social, cultural, and academic language proficiency in order to succeed. The Charter School's Multilingual program must require each ELL Student to demonstrate proficiency in the four language domains: reading, writing, speaking, and listening, as measured by a variety of formal and informal assessments implemented by the District. EL students must demonstrate proficiency through the English Language Proficiency Assessment (ELPA) administered annually. In addition, the Charter School's students may participate in Standards-based Proficiency Assessment (STAMP) annually to determine eligibility for the Seal of Biliteracy and World Language credits at the high school level.

4. REQUIRED COMPONENTS

The Multilingual program implemented by the Charter School must be sufficient to entitle each eligible EL Student to an additional 0.5 ADMw in funding. Additionally, the Charter School's ESL program must conform, in all respects, with the requirements of state and federal law and the District's ESL policies and procedures. The Charter School's Multilingual program must include the following components:

4.1 Identification. All eligible EL Students must be identified in accordance with federal and state requirements. The Charter School will use the following process to identify eligible ELL Students:

4.1.1 Prior to admission of any student to the Charter School, each student's parent or guardian must complete an admission packet which includes a Language Use Survey developed by the state.

4.1.2 If a language other than, or in addition to, English is listed on the Language Use Survey the Charter School shall administer an English proficiency assessment to such student. The English proficiency assessment shall be the same assessment used by the District in its schools and timing of such assessment shall conform to the timing required of District schools and federal and state requirements.

4.1.3 Based on the results of the English proficiency assessment, using standards consistent with District standards, eligible ELL Students will be placed in an appropriate English Language Development ("ELD") program and will be provided access to academic content through an integrated model.

4.2 Placement. The Charter School staff or administrators will determine the appropriate grade level for each EL Student in accordance with District guidelines and in compliance with all applicable laws. The Charter School staff or administrators will work with the District's Multilingual Department to review the student's English Language Proficiency Assessment (ELPA) results, prior education records (e.g. transcripts or grade reports), and other information and evaluate the student's age, grade level, overall educational background, interests, native language skills, and language proficiency, to determine the appropriate academic classes for each EL student. Each EL student must have access to all educational programs and will have a personalized educational plan.

4.3 English Language Development and Access to Academic Content.

4.3.1 The Charter School must provide each EL Student with language services in development of English proficiency in speaking, listening, reading, and writing. Typical models of ELD services include ESL Pull Out, ELD class period, Collaborative co-teaching, consulting, dual language, and other ELD-based instructional models. The major ELD components that should be included in the ELD program model are outlined in the District's Guiding Principles for Teaching Multilingual Learners:

(a) Collaboration - Students benefit when collaboration among adults drives instructional practices.

(b) Equitable Assessment Practices - Teachers should use formative assessment practices to guide teaching and consider English and heritage language proficiency.

(c) Support on the Way to Independence - Provide support when needed and also opportunities for productive struggle.

(d) Embrace Multilingualism - Multilingualism is an asset; use heritage languages to enhance learning.

(e) Value Cultural Assets - Recognize student strengths; leverage them to educate the whole child.

(f) Always Advocate - Build relationships & strive to reduce impacts of individual and systemic bias; equip students to be agents of their future.

(g) Opportunities for Meaningful Talk - Design learning experiences that encourage students to interact with each other.

4.3.2 The Charter School must provide each EL Student with access to academic content in all subject matters through differentiated instruction, primary language instruction, or bilingual instruction. Differentiated instruction focuses on content and uses many strategies, including, but not limited to, visual aids, building background knowledge, use of repetition, and avoidance of highly idiomatic usage of the English language. Differentiated instruction may also require teachers to check for comprehension more often. The goal of differentiated instruction is to make grade level content curriculum such as math, science, social studies, reading, and writing accessible to all EL Students. The goals of primary and bilingual instruction is for students to work towards biliteracy and bilingualism so they are able to read, write, speak, and listen fluently in two languages. In addition, the Charter School may use the District's Best Practices for Teaching Multilingual Learners aligned to the Guiding Principals.

4.4 Reclassification. To be exited from the EL program, an eligible EL Student must meet English proficiency standards established by the District. Currently, the District's standards provide that an EL Student who receives a score of 4 or 5 on the English Language Proficiency Assessments (ELPA) and who has shown continuous progress from year to year will be exited from the ESD program. There is no portfolio option for exiting students at this time.

4.5 Monitoring. The Charter School staff and administrators will monitor all exited EL Students, while such student remains enrolled at the Charter School, for four years following the student's exit from the ELD program, especially monitoring for any language related learning difficulties for the student. The Charter School must provide special services to any exited charter school EL Student who fails or is at risk of failing academic programs during the four-year monitoring period.

5. TRANSLATED MATERIALS

The Charter School shall translate its enrollment materials, website, handbooks and communications materials into any language required by law or District policies. Additionally, the Charter School will provide registration assistance in languages other than English to the extent required by law or District policies.

6. COOPERATION

Although the responsibility to provide required services to EL Students remains solely with the Charter School, the District will serve, to the extent it deems reasonable, as a resource to provide advisory services to the Charter School with respect to identification, determining placement, reclassification, monitoring of EL Students, and other ELD program related areas. In the event the Charter School desires to utilize services of the District outside of the scope of the District's advisory role, the District must agree in writing to provide such services and the Charter School and the District must first agree upon the price the Charter School must pay for such services. To the extent possible, the District shall make available to the Charter School's teachers and staff, ELD training that is available to District teachers and staff, except that the Charter School shall reimburse the District for any additional costs incurred by the District as a result of any of the Charter School's teachers or staff attending any such training. The Charter School will cooperate with the District and provide it with any information it reasonably requests related to the Charter School's ESL program, including information the District needs or desires for reporting to third parties.

7. TEACHER REQUIREMENTS

All Charter School ELD program teachers must have an ESOL endorsement and meet all applicable requirements under federal law pertaining to teacher qualifications that may be in effect during the term of this Charter. Teachers in academic content classes are not required to have an ESOL endorsement. All the Charter School teachers, regardless of whether they are assigned to the ELD program, must participate in ongoing professional development related to teaching multilingual students, including training with respect to integration of content and language, bilingual education, literacy practices, and language acquisition.